

Principled Disobedience

What do suffragists' window-smashing, the Catonsville Nine's napalm-soaked draft registries, Snowden's leaks, and Femen's topless heckling have in common? What does Pussy Riot's "Punk Prayer," their guerrilla performance in Moscow's Cathedral of Christ the Savior, share with covert aid to unauthorized migrants, Sea Shepherd's anti-whaling efforts, and Anonymous's DDoS attacks? Not much at first glance: these activities involved different targets, sites, methods, and goals. Some were covert, others public; some violent, others nonviolent; some coercive, others not. Yet all have been severely condemned, criminally charged, or prosecuted. And all have been described, by those who approve of them, as instances of civil disobedience.¹ And, in response, opponents have marshaled an idealized understanding of civil rights-style disobedience to deny that these acts qualify as civil.

This debate might appear to be one of mere semantics. Why should we care whether leaks or topless heckling qualify as civil disobedience? On this thinking, one may define "civil disobedience" however one wants, in a manner that includes or excludes some or all of the disobedient acts listed above. What matters is whether and how the disobedient acts in question can be justified. This is the central issue, to be sure—and the object of the next chapter. But first, I want to think about what is at stake in the conceptual question, why the main approaches to understanding civil disobedience are defective

and limited, and how we should instead conceive of *principled disobedience* beyond the narrow confines of civil disobedience.²

The term “civil disobedience” is used not only to describe but also to evaluate. To call a disobedient act civil is to highlight the agent’s principled motivations and communicative intentions, to make a disruptive breach of law intelligible as a speech-act—an address to the community—and, thus, to begin the work of its justification. Especially in the United States, civil disobedience evokes a venerable tradition associated with the likes of Rosa Parks and Martin Luther King Jr. The label is coveted, in a way, sought out to legitimize illegal actions. For instance, social conservatives compared Kentucky county clerk Kim Davis’s refusal to issue marriage licenses to same-sex couples to Rosa Parks’s refusal to give up her seat on the segregated city bus.³ It is in part because civil disobedience is exalted that so much is at stake in its meaning, that public discourse and the philosophical literature are hard to revise.

The historical connotations and established meaning of civil disobedience hint at the difficulty of redefining the concept, while its normative significance and appeal explain the reluctance to steer away from civil disobedience and the temptation to expand its scope to encompass any activity with which one is politically aligned. To be sure, there is something special about civil disobedience. But I will argue in the next chapter that there is something special about uncivil disobedience, too, and that we should stop associating incivility with wrongfulness and look to its aptness and potential value under certain oppressive circumstances.

The acts of principled disobedience listed above may be acceptable, but they are not civil, and there should be no need to modify our concept of civil disobedience to incorporate them. Instead, I propose to articulate a basically sympathetic approach to principled disobedience, open to the possibility that these acts are justified. Indeed the next chapter will show that uncivil acts of disobedience can be

justified, in part on the basis of the grounds commonly used to justify civil disobedience; and chapters 3–6 will argue that they can even be required in some circumstances, on the basis of the grounds commonly used to support the moral duty to obey the law. A sympathetic approach should be phenomenologically accurate—that is, faithful to practitioners’ self-understanding—and politically useful, which is to say able to contribute to public debates. This project is broadly “ameliorative,” to use Haslanger’s terminology, insofar as it puts forward a framework to assess disobedience that supports emancipatory struggles such as those pursued by the agents mentioned above.⁴

The ordinary conception of civil disobedience associated with Rawls tends to undermine emancipatory struggles (despite the emancipatory potential of an attentive reading of his theory). Shaped by an idealized theory and an unrealistic reading of the African American civil rights struggle, civil disobedience as ordinarily understood by the public and by philosophers deters noncompliance and reinforces the status quo. Kimberley Brownlee and Robin Celikates have instead offered “inclusive” accounts of civil disobedience. These are capacious enough to encompass all the acts of principled disobedience mentioned at the outset, and they offer worthwhile counter-narratives to public censure and states’ punishment. However, they stretch the concept of civil disobedience beyond recognition and fail to account for activists’ deliberate departures from the standard template of civil disobedience. The most promising ameliorative route is not maximal inclusion, I will argue, but a richer repertoire of political resistance that includes uncivil disobedience.

DISOBEDIENCE IN THE CIVIL RIGHTS STYLE

Public understanding of civil disobedience is the product of two different strands: the broadly Rawlsian philosophical conception

of civil disobedience and the official narrative of the civil rights movement in the United States. The two have combined into a commonly held conception of what civil disobedience meant in the civil rights movement of the 1950s–1970s—a conception that functions as a counter-resistance ideology, as I shall argue. Although the discussion is centered on the American context, it applies across publics, given the global resonance of the civil rights movement and its associations with figures from Gandhi to Nelson Mandela, the Dalai Lama, Liu Xiaobo, and Malala Yousafzai, and movements from the Palestinian Intifada to the Arab Spring and Spain’s Indignados, among others. I am not aware of any comparative research on peoples’ understandings of civil disobedience, but one might reasonably expect many similarities with the American conception, itself inspired in important ways by experiences abroad.

Theory and History

Legal, moral, and political theorists in the Anglo-American tradition began reflecting on civil disobedience in the 1960s, in the midst of civil rights and anti-Vietnam War protests in the United States, anti-nuclear protests throughout the West, and decolonization struggles in the global South. Carl Cohen, Michael Walzer, Ronald Dworkin, Richard Wasserstrom, and, most prominently, John Rawls, conceptualized and defended civil disobedience against official and widespread public accusations that disobedience, even if principled, sowed lawlessness and invited violence.

Theorists were successful in carving out a space for civil disobedience in liberal democracy. Erin Pineda highlights the significant impact that theorists had in the U.S. context:

What emerged out of this effort has been a remarkably stable set of ideas about civil disobedience—the forms of action and sets

of attitudes entailed by it—that have remained central to the way that political theory, and the American political public at large, reasons about the definition, role, and justification of disobedient protest.⁵

This stable set of ideas is Rawls's. In his view, civil disobedience is a conscientious, public, nonviolent breach of law undertaken to persuade the majority to change a law or policy in a nearly just society.⁶ Rawls understood publicity to require that agents give authorities fair notice of their planned disobedient activity, act in public, and appeal to the community's shared conception of justice. He thought that nonviolence excluded the use of force (or coercion, in Rawls's usage) and actual or likely infliction of harm against persons. In addition, agents of civil disobedience are supposed to accept, and even seek out, the legal consequences of their actions. In doing so they demonstrate their general "fidelity to law," endorsement of the system's legitimacy, and belief that the latter generates a moral duty to obey the law.

Thus, in Rawls's vision, civil disobedience contrasts with armed resistance, rebellion, and revolution, which use violence and covert tactics, and whose agents reject the system's legitimacy, lack respect for established law, seek to evade punishment, and pursue radical goals. Rawls further sets forth three necessary justificatory conditions, which purport to minimize the disruptive effects of civil disobedience: the act must (1) target a serious violation of the first principle of justice in Rawls's theory ("the principle of equal basic liberties"), (2) be undertaken as a last resort, and (3) be coordinated with other groups with similar grievances.

Rawls did not devise his account out of thin air. It came from, and refined, some of the ideas articulated by activists themselves. We might say, though, that he brought these ideas together in a way that "stuck" and that his concerns about the threat of principled disobedience to

law and order were shared by the dominant majority—that is, people who viewed their society as democratic and basically just.

What inspired this account was not the radical activism of Thoreau and Gandhi. Though icons of civil disobedience, their actions do not fit inside Rawls's boundaries. Thoreau's tax refusal lacked the publicity now associated with civil disobedience; it became public only because he later wrote and lectured about it.⁷ Tellingly, his essay was originally titled "Resistance to Civil Government" and posthumously retitled "On Civil Disobedience." Gandhi had revolutionary goals. As David Lyons has argued, neither man deemed, or had any reason to deem, his state—antebellum United States or British Raj—legitimate.⁸

It was the style of King and others involved in the Black civil rights struggle that most clearly shaped the standard account. Campaigns such as the Good Friday march in Birmingham (which violated a court order), lunch counter sit-ins, and Freedom Rides satisfied many of Rawls's demanding criteria.⁹ They appealed to constitutional principles of political morality and pursued modest goals of reform, not revolution. Activists thoroughly trained in and committed to nonviolence disobeyed the law publicly, often giving authorities advance notice of their plans. They responded to state and mob violence peacefully and willingly submitted to arrest and jail for their lawbreaking. They displayed the essential marks of civility.

By praising activists' respect for law and emphasizing their endorsement of the system's legitimacy, philosophers reassured law-and-order opponents. But this strategy distorted political reality.¹⁰ For activists' outward submission to law did not in fact reflect their endorsement of the system's legitimacy or their acceptance of a moral duty to obey the law. The standard account wrongly—that is, implausibly and objectionably—ascribed these attitudes and beliefs to civil disobedients whose choices in fact were mainly driven by strategic rather than moral considerations. For example, the Montgomery bus

boycott demanded the end of segregated seating in public buses—not the end of racial segregation—because social and legal change are known to occur in a piecemeal fashion. Indeed, its organizers initially demanded only courtesy and the hiring of Black drivers. But King’s objective went far beyond buses. “The thing to do,” he wrote, “is get rid of the system.”¹¹ And Southern authorities’ unyielding response reflected a shared understanding of what was at stake in apparently limited reform.

King denied that the United States of Jim Crow deserved respect and called the caste system “unjust” and “evil.”¹² His famous insistence, in the “Letter from Birmingham City Jail,” that civil disobedience expresses the “highest respect for law,” has been widely misunderstood. It appears in the context of his discussion of natural law’s tenet that “an unjust law is no law at all” and can only be properly understood to enjoin respect for just law, as opposed to deference to any law at all by virtue of its being a law. In turn, the commitment to nonviolence was a strategic choice, not a reflection of absolutist moral principle or fidelity to law. King acknowledged the aptness of anger, and the legitimacy of violence in self-defense, but argued that the civil rights movement ought to be steadfastly nonviolent so as not to risk frightening the White majority (he deemed fear a central affective component of anti-Black racism).¹³ He denied the standard equation between nonviolence and non-coercion, observing that nonviolent civil disobedience can “create such a crisis and establish such creative tension that a community that has constantly refused to negotiate is forced to confront the issue.”¹⁴ King also conceived of submission to arrest and punishment in symbolic terms, as a “powerful and just weapon,” and as a matter of prudence, given that civil rights activists were outnumbered and outgunned.¹⁵

In short, civil rights groups adopted their particular style of civil disobedience for context-dependent, tactical purposes. Yet theorists and pundits turned these tactics into deep moral commitments on the

part of agents supposedly eager to demonstrate their endorsement of the state's legitimacy, and placed these subjective requirements at the core of their defense of real-world civil disobedience.

Rawls's Theory

Let me pause and consider an objection on behalf of Rawls before turning to the ideological work that the standard conception of civil rights style civil disobedience does. Rawls's followers stress his explicit restriction of the account of civil disobedience to the special context of the nearly just society. Nearly just societies publicly endorse, and are ordered by, principles of justice such as the ones Rawls defends in *A Theory of Justice*. They are democratic. They generate a moral duty to obey the law that is grounded in the duty of justice, which demands supporting just institutions (chapter 3 examines this account). Civil disobedients are to accept the political system as nearly just only when *it is*, and the United States of his time could obviously not be deemed nearly just, according to Rawls's own standards of near justice.¹⁶

I agree that an attentive reading of Rawls's theory yields the conclusion that it shouldn't be applied to Thoreau's, Gandhi's, and King's civil disobedience. Nevertheless, it has been so applied, and it has clearly inspired the standard account of civil disobedience I just critiqued. Rawls invites the application of his theory to the activism of his day when he characterizes his account of civil disobedience as an incursion into "partial compliance theory," defined as the study of "the principles that govern how we are to deal with injustice." He highlights the importance of such inquiry: "Obviously, the problems of partial compliance theory are the pressing and urgent matters. These are the things that we are faced with in everyday life."¹⁷ So one might reasonably find it strange if Rawls's discussion about this "pressing and urgent" issue of civil disobedience didn't apply to

real-world civil disobedience. He also appears to believe that U.S. society was nearly just. In 1964, before the end of de jure racial segregation, he writes, "I shall assume, as requiring no argument, that there is, at least in society such as ours, a moral obligation to obey the law," a condition that could only hold in a nearly just society.¹⁸

In any case, *Theory of Justice* does have emancipatory potential. In it Rawls is open to the possible justification of forms of principled disobedience beyond civil disobedience in unjust as well as nearly just societies. He argues that sometimes, when political systems are ordered by defective conceptions of justice, "one may have no recourse but to oppose the prevailing conception and the institutions it justifies in such ways as promise some success."¹⁹ He also writes that "sometimes," if the civil disobedient's appeal to the majority "fails in its purpose, forceful resistance may later be entertained."²⁰ And in *Justice as Fairness: A Restatement*, Rawls notes the risk that, even in an apparently well-ordered, nearly just society, "when the strains of commitment seem to us excessive . . . we become sullen and resentful, and we are ready as the occasion arises to take violent action in protest against our condition."²¹ However, Rawls does not discuss the acceptable escalation path from civil to uncivil disobedience, or the potential justification of the latter. Thus we need fuller exploration of partial compliance theory.

History and Ideology

The official reading of the civil rights movement is not just inaccurate in its presentation of agents' attitudes and ideals. It also functions, thanks in part to this inaccuracy, as a counter-resistance ideology.

First, the official narrative undercuts political radicals by falsely equating the civil rights movement with the campaigns led by King and the Southern Christian Leadership Conference, thereby ignoring the contributions of ideologies, groups, and campaigns

such as Black nationalism, the Black Panther Party, the Nation of Islam, pan-Africanism, Black workers' movements, prisoners' rights movements, Black feminism, third-worldism, and assorted Marxist liberation movements. Adherents of some of these less-recognized groups resorted to violence and called for an overthrow of the racist, imperialist system. But official history brushes these activists aside. It may be that some of them threatened the civil rights movement's success, but without these radical movements as foil, King's movement would not have looked so moderate, and therefore may not have gained support from White liberals.²² In his "Letter from Birmingham City Jail," King poses his movement of nonviolent direct action as the only alternative to Black violence. He stressed that "the streets of the South would be flowing with floods of blood," but for his movement.

And I am further convinced that if our white brothers dismiss as "rabble rousers" and "outside agitators"—those of us working through the channels of nonviolent direct action . . . millions of Negroes, out of frustration and despair, will seek solace and security in black ideologies, a development that will lead inevitably to a frightening racial nightmare.²³

And so the history we tell is one in which a nonviolent, state-legitimizing civil disobedience movement single-handedly wins the struggle for civil rights. The larger, longer, and more pugnacious process of political resistance is ignored, lest anyone get the wrong idea about how to protect themselves or vindicate their rights.

Second, the accepted narrative overstates the victory of the civil rights movement, as crystallized in the 1964 Civil Rights Act, the 1965 Voting Rights Act, and the Federal Housing Act of 1968, thereby discouraging further activism. Fifty years on, many of the social ills that inspired the movement remain unaddressed: residential

and school segregation continue to divide Americans by race; many states have counteracted Black voters' access to representation and the political franchise through electoral redistricting, voter ID laws, and felon disenfranchisement; Blacks still suffer disproportionately from poverty and unequal opportunities in education, work, and healthcare; racism is pervasive, openly so in a White-supremacist, nationalist movement rebranded "alt-right"; courts and the public oppose race-conscious antidiscrimination policies as outdated and unnecessary; and police profile, abuse, and even kill Blacks with near impunity. The civil rights movement accomplished important gains, but in overstating these, we portray American society as having realized the demands of justice and therefore successfully generated a moral duty to obey the law.

Third, the emphasis on civil rights activists' nonviolence counsels compliance in the face of Black victimization. In *Between the World and Me*, Ta-Nehisi Coates writes of Black History Month,

Every February my classmates and I were herded into assemblies for a ritual review of the civil-rights movement. Our teachers urged us toward the example of freedom marchers, Freedom Riders, and Freedom Summers, and it seemed that the month could not pass without a series of films dedicated to the glories of being beaten on camera. *Why are they showing this to us?* Why were only our heroes nonviolent? Back then all I could do was measure these freedom-lovers by what I knew. Which is to say, I measured them against children pulling out [guns] in the 7-Eleven parking lot, against parents wielding extension cords, and the threatening intonations of armed Black gangs saying, "Yeah, nigger, what's up now?" I judged them against the country I knew, which had acquired the land through murder and tamed it under slavery, against the country whose armies fanned out across the world to extend their dominion. The world, the real

one, was civilization secured and ruled by savage means. How could the schools valorize men and women whose values society actively scorned? How could they send us out into the streets of Baltimore, knowing all that they were, and then speak of nonviolence?²⁴

Coates highlights the hypocrisy and even absurdity of urging nonviolence upon children whose daily lives are dominated by violence, in a country founded upon, and continually engaged in, the same. Here and elsewhere in his writings, he shows how the official narrative valorizes docility and deters the population—especially Blacks—from unruly kinds of resistance. As he puts it elsewhere, “When nonviolence is preached by the representatives of the state, while the state doles out heaps of violence to its citizens, it reveals itself to be a con.”²⁵

Fourth, the official narrative’s categorical condemnation of violent resistance obscures state-authored and state-condoned violence. Angela Davis stressed this in a 1972 interview with Swedish reporters who asked whether she approved of the use of guns and violence. In response, she problematizes the assumptions underlying the question, describing “the violence that exists on the surface everywhere” for Blacks, which she experienced firsthand in Los Angeles: being eyed with suspicion, constantly stopped and frisked by police, treated as criminals or agitators. She goes on:

And then you ask me whether I approve of violence. . . That just doesn’t make any sense at all. Whether I approve of guns? I grew up in Birmingham, Alabama. Some very, very good friends of mine were killed by bombs—bombs that were planted by racists. From the time I was very small I remember the sound of bombs exploding across the street, our house shaking. I remember my father having to have guns at his disposal at all times

because of the fact that at any moment we might expect to be attacked. The man who was at that time in complete control of the city government—his name was Bull Connor—would often get on the radio and make statements like “Niggers have moved into a White neighborhood. We’d better expect some bloodshed tonight!” And sure enough there would be bloodshed.²⁶

In the face of a regime of terror, some Blacks responded by arming themselves for protection. Davis’s analysis suggests that those who condemn Black (mostly self-defensive) violence tend to do so in a vacuum, without regard to, and in ways that obfuscate, the state’s own encouragement and commitment of violence against Blacks.

Fifth, and related, ubiquitous calls for civility conceal and distract from what Bernard Harcourt calls “incivility of politics”—the harms it regularly inflicts on citizens. All too often these demands, implicit in the official history of civil rights, are wielded disingenuously by those in power to deter noncompliance and even law-abiding dissent.²⁷ Austin Sarat finds in *Walker vs. Birmingham*, the 1963 Supreme Court ruling that upheld the city of Birmingham’s injunction against civil rights activists, “an instance in which the demand for civility was taken to a frightening extreme,” to the point of “pathology.”²⁸ The ruling described activists as “impatient,” and, Sarat finds, implied that they were “uncivil, disrespectful, and dangerous.”²⁹ The Court put “respect for judicial process” above all else: it upheld the arrests of activists, including King and Ralph Abernathy, on the grounds that they ought not have disobeyed the injunction, even though it would not have withstood constitutional scrutiny. Civility is equated with law-abidance and deference—abidance by an unjust and unlawful court order, and deference to a racist city itself openly noncompliant with federal law.

Walker vs. Birmingham is not an isolated sickness of the body politic; it is symptomatic of widespread social ills. Recall that the White

clergy called King's civil rights movement "rabble rousers." Harcourt notes in his analysis of the political uses of civility and incivility,

The faculty to define certain speech as uncivil, to castigate a speaker, to call for, urge, or demand civil discourse—and to get away with it—is intimately connected to one's place in the political realm. It is also, unquestionably, a political stratagem. . . . Calling out incivilities and urging greater civility in political discourse are arrows in the quiver of the political arts. Although they are presented as neutral, they are not. They represent, instead, a way to seize the political high-ground. As such, they often redound to the benefit of those who are in stronger political positions. Often, they serve the interests of the more dominant or mainstream political voices.³⁰

The powerful often use calls for civility to control and silence activists, to cast a negative light on their activities and prejudice the public against them. Calls for civility ignore and obscure the differentials of power—the fact that it is easy for those in power, and harder for entrenched minorities, to speak and be listened to and therefore to be civil. The former have ready access to the public sphere, while the latter not only lack such access but are also vulnerable to discrimination, prejudice, and epistemic injustice (which consists in doing wrong to people in their capacity as knowers, for instance by failing to really listen to them or by deflating the credibility or sincerity of their testimony).³¹

By misrepresenting the historical realities of social change, and articulating a set of associated beliefs and judgments about civil disobedience, the history and theory of civil disobedience warp public understanding of liberation struggles. To be clear, what is at stake in the official narrative of the Black freedom movement is not simply historical accuracy: this narrative and the theory of civil disobedience

it rationalizes provide the benchmark against which other social and political movements are judged. Usually they are judged harshly—for what can live up to an ideal?—and therefore branded uncivil and dangerous.

In the official narrative of civil rights and the standard theory of civil disobedience, we thus have something like an ideology, which includes a defense of the status quo through a series of conformist moves: affirmation that our society is a nearly just one, erasure of state-authored violence, and celebration of submission and docility. Such implicit counter-resistance ideology demands in response an accurate history of the struggle for civil rights, to replace the sanitized and distorted official picture, and an ameliorative account of political resistance.

INCLUSIVE ACCOUNTS OF CIVIL DISOBEDIENCE

Theorists dissatisfied with the standard, Rawlsian account have articulated “minimalist” or “inclusive” concepts of civil disobedience that extend to all sorts of principled lawbreaking.

Brownlee’s is one such account. She problematizes the conceptual distinctions standardly drawn between civil disobedience and other types of dissent, noting that civil disobedients may intend a revolution and that conscientious objectors often seek broad reform and not simply personal exemption. For Brownlee, civil disobedience “must include a deliberate breach of law taken on the basis of steadfast personal commitment in order to communicate our condemnation of a law or policy to a relevantly placed audience.”³² This kind of civil disobedience need not be public or nonviolent. What sets it apart from ordinary crime, radical protests, and private conscientious objection (or “personal disobedience” in her terminology)

are its constrained, communicative, and non-evasive properties, which mark the agent's efforts to engage an intended public in dialogue. Thus Brownlee conceives of the suffragist tactics as civil disobedience and she has argued that Snowden's actions were civilly disobedient on her account but not on Rawls's.³³

For his part, Celikates, who spearheads the radical democratic approach, has also been a vocal critique of the standard liberal account of civil disobedience. He challenges the narrowness and ideological underpinnings of the criteria of publicity, nonviolence, willingness to accept punishment, appeal to shared principles of justice, and even conscientiousness. As counterexample to the latter criterion, he points to cases of self-interested civil disobedience, for instance to protest a new highway slated to pass through one's neighborhood.³⁴ Celikates understands civil disobedience as

an intentionally unlawful and principled collective act of protest (in contrast to both legal protest and "ordinary" criminal offenses or "unmotivated" rioting), with which citizens—in the broad sense that goes beyond those recognized as citizens by a particular state—pursue the political aim of changing specific laws, policies, or institutions (in contrast to conscientious objection, which is protected in some states as a fundamental right and does not seek such change) in ways that can be seen as civil (as opposed to military).³⁵

This broad conception imposes no requirement on the agent's attitude toward the system, her target, or the principles she appeals to. The civilly disobedient act need not be done publicly. Celikates also rejects the nonviolence proviso, on the grounds that it reduces civil disobedience to a merely symbolic protest (a speech-act) and thereby ignores the confrontation it unavoidably creates.³⁶ Both Celikates's and Brownlee's inclusive conceptions maintain Rawls's core insight

that civil disobedience is essentially a communicative act aimed at political change, but they leave much else up for grabs.

Celikates's and Brownlee's accounts of civil disobedience are ameliorative in the sense I explained earlier: they are, and present themselves as, efforts to justify emancipatory resistance to injustice. Both include in the category of civil disobedience controversial acts of resistance performed by suffragists, sanctuary workers, and others. The thrust of Brownlee's argument in *Conscience and Conviction: The Case for Civil Disobedience* is that civil disobedients have stronger claims to legal protection than do conscientious objectors—protections that, in liberal societies, are considerable. She also defends a moral right of civil disobedients to evade legal punishment. Celikates, meanwhile, offers a radically democratic understanding of disobedience as a dynamic contribution to political processes, contra what he sees as the “overly constrained, domesticated and sanitized” understanding of civil disobedience offered by mainstream liberal accounts.³⁷

I am sympathetic to both accounts, but principled disobedience as I shall articulate it is, I think, more politically useful and phenomenologically accurate than these ameliorative versions of civil disobedience.

First, Brownlee and Celikates stretch the concept of civil disobedience beyond recognition, encompassing in it some features previously deemed to be incompatible. For instance, sabotage and violence can be civilly disobedient on Brownlee's view.³⁸ And Celikates, in a co-authored article, dubs Anonymous civilly disobedient even when the group members conceal their identity, use coerced botnets to launch DDoS attacks, and admit mixed motivations including just a zeal for pranks.³⁹ These features, the authors recognize, are usually seen as “other” to, or even “opposites” of, civil disobedience. Because of this, inclusive accounts of civil disobedience stand little chance of convincing the public and therefore score low on the political-usefulness quotient.

A second problem with inclusive accounts is that they miss the point of many disobedient actions, which is to *refuse* to follow the standard script of civil disobedience. Emmeline Pankhurst defended suffragists' use of "militant methods" (including heckling, window-smashing, sabotage, and hunger strikes) and characterized herself as a "soldier" in a "civil war" waged against the state. Ukrainian-French radical feminist collective Femen brands its disobedience as radical and provocative, not civil, by calling its tactics—which include "sex attacks, sex diversions and sex sabotage"—*sextremism*.⁴⁰ Cultural critic Mark Dery conceives of "culture jammers"—such as billboard bandits, hacktivists, and media hoaxers—as "artistic terrorists" and "communication guerrilla" fighters.⁴¹ And Black Lives Matter activists hint at the rupture between their work and understandings of civil disobedience with the slogan "Not Your Grandfather's Civil Rights Movement." In short, agents may see themselves, and seek to be perceived, as radical and provocative rather than civil.⁴²

There may be other good reasons for activists to openly reject civility: incivility can be used as a strategy to publicize a group's cause. Or, again, agents may not be in a position to claim civility. In his discussion of poor urban Blacks' acts of spontaneous defiance, Tommie Shelby notes,

Spontaneous rebellion reaches its apotheosis in the urban riot, where looting, mass destruction of property, and brutal violence are on public display. When legitimate avenues for political action fail to produce results or are closed off, such public unrest can seem to be the only power the ghetto poor can wield collectively that has a chance of garnering concessions from the state.⁴³

And Avia Pasternak writes that, in the absence of the political capital needed to organize lawful protests and even civil disobedience campaigns, "political rioting could be the only accessible form of

political participation for the seriously marginalized members of society, at least in the very initial stages of protest.”⁴⁴ Recourse to civil disobedience may be closed off to other marginalized populations. Prisoners, who are often stripped of their civil and political rights (disenfranchisement is known as “civic death”) and barred from effective communicative action, cannot take part in civil disobedience even if they wish to. And some activists may explicitly reject civility in order to expose the falseness of the presumption of equal standing within the standard conception of civil disobedience.

As things stand, we are not equipped to analyze and justify these departures from the template of civil disobedience: the public understanding of civil disobedience excludes uncivil disobedience from the realm of justifiable disobedient protest, Rawls only discusses civil disobedience and restricts it to the nearly just society, and inclusive accounts such as Brownlee’s and Celikates’s erase the distinctiveness and underlying intentions of uncivil means by encompassing them within civil disobedience. In my view, most of the ameliorative action takes place outside civil disobedience: we should expand our repertoire of potentially acceptable modes of principled disobedience beyond civil disobedience, readily granting the incivility of certain disobedient acts and opening ourselves to the possibility that some types of uncivil disobedience can be justified.

A MATRIX OF RESISTANCE

So, how we understand civil disobedience, how we distinguish it from other forms of resistance, matters. How *should* we understand it? The way forward and out of the deadlocked debates in which sympathizers affirm, and opponents deny, that a given act of resistance qualifies as civil disobedience, consists in expanding our repertoire of potentially acceptable modes of unlawful resistance beyond

civil disobedience. We should readily grant the incivility of certain disobedient acts and open up to the possibility that some acts of uncivil disobedience are justified. A matrix of resistance seeks to lead this way forward. This matrix will not offer necessary and sufficient conditions for its central concepts—resistance, principled disobedience, civil and uncivil disobedience—but simply highlight some features of the concepts, like constellations on the matrix rather than sharply outlined categories.

I use “resistance” to designate a broad range of dissident activities, of varying scope and impact, which express opposition, and perhaps refusal to conform, to a dominant system of values, norms, rules, and practices. Such rules and practices may be codified in law. Resistance is, by definition, principled—that is, morally or politically motivated. Resisters basically share an urge to respond to (if not also to change) perceived injustice. They may or may not recognize the system’s legitimacy. The principles that ground resistance may or may not be worthy of public recognition (resistance in pursuit of White nationalism, for instance, is unjustifiable).

Resisters may address private or public actors, at home, abroad, or at the global level. They may pursue a variety of goals including, but not limited to, communicating condemnation of an accepted norm, law, court sentence, police order, or practice; denouncing wrongs and democratic deficits; alerting the public to a wrong; asserting rights; protecting oneself and others; protecting animals and the environment; promoting important values such as freedom and transparency; seeking legal reform; seeking cultural changes; asserting dignity; gaining collective self-determination; expressing solidarity; frustrating a wrong; calling for secession; refusing to participate in wrongful activities; protesting historical wrongs; and retaliating against wrongdoers. This versatile list shatters the traditional dichotomy between civil disobedience and resistance-as-rebellion, outlining instead a capacious concept of resistance encompassing

lawful dissent, principled disobedience and, at the limit, revolution. As should be clear, resisters may be wrong in their assessment of wrongs and injustices, and the goals they pursue may or may not be justified: the matrix of resistance sketched here does not prejudge the assessment of particular acts.

Elements of this concept of resistance exist in other theories, but none are so comprehensive. On the one hand, feminist philosophers have long advanced a fluid notion of resistance, understanding its role in denouncing unjust conditions, changing cultural norms (e.g., through consciousness-raising and everyday resistance), and asserting self-respect.⁴⁵ However, they have largely been concerned with lawful acts and social movements. Theorists of civil disobedience, on the other hand, focus on a particular, narrowly constrained style of unlawful protest.

I am not aware of any account of resisters seeking revenge for perceived wrongs. Yet many acts of slave resistance could fall in this category, from work slowdowns to cheating on the weight of a daily crop by adding stones or soaking cotton in water.⁴⁶ Instances of jury nullification may also fit the bill. For example, some of the jurors in O. J. Simpson's murder trial have admitted voting to acquit him as "payback" for police brutality.⁴⁷ And "Operation: Avenge Assange" saw Anonymous conduct a series of DDoS actions in retaliation against a dozen corporate websites, including Visa and PayPal, for their decision to freeze donations to WikiLeaks (under government pressure) after it published classified state documents leaked by Chelsea Manning.⁴⁸ In short, there are numerous gaps in current discussions of resistance, which this matrix of resistance aims to fill.

Resisting injustice involves refusing to cooperate with, and trying to undermine, the mechanisms that produce and sustain it. One may do so through lawful acts such as marches, denunciations of wrongs, verbal or symbolic expressions of solidarity, advocacy, human rights lawyering, silent protests, and online activism. Lawful resistance may

be uncivil: think of the Westboro Baptist Church's hateful protests at gay soldiers' funerals, internet trolls, or politically conscious yet offensive hip-hop like N.W.A.'s 1988 "Fuck Tha Police," which Shelby conceives as a kind of "impure political dissent."⁴⁹ Jessica Bulman-Pozen and David Pozen have recently theorized another kind of lawful resistance under the banner "uncivil obedience," which they define as hyperbolic, literalistic, or otherwise unanticipated adherence to a legal system's formal rules.⁵⁰ Examples include motorcyclists strictly adhering to the speed limit in order to protest it and the creation of a political action committee by the TV host Stephen Colbert in order to ridicule Federal Election Commission rules.

Among unlawful acts of resistance I am interested in "principled disobedience," a category that encompasses civil and uncivil disobedience, and other kinds of lawbreaking that may be aptly characterized as neither (such as terrorism).⁵¹ Principled disobedience refers to politically or morally motivated resorts to illegality in the opposition or refusal to conform to the system's dominant norms. Illegality raises special issues given states' claims to subjects' obedience, agents' liability to legal sanction, and the common view that lawbreaking is presumptively wrong. In order to unpack these issues, I have determined to focus on principled—especially civil and uncivil—disobedience.

Civil disobedience is one subset of principled disobedience. It designates deliberate breach of law intended to protest unjust laws, policies, institutions, or practices and undertaken by agents broadly committed to basic norms of civility. There are four such norms associated with civil disobedience: publicity, non-evasiveness, nonviolence, and decorum.

On the standard account, recall, publicity (the agent's performance of the act in the open), non-evasiveness (her acceptance of legal sanctions), and nonviolence (which rules out the use of force and infliction of harm) are necessary to the disobedient act's communicativeness—its nature as a speech-act—and civility. But

there is more to it. Consider Pussy Riot's "Punk Prayer": public, non-evasive, and nonviolent, this guerrilla-style protest song in a Russian Cathedral was nonetheless denied the label of civil disobedience because, detractors argued, it desecrated a religious place and defiled the state. Members of the group were convicted of "premeditated hooliganism," which is defined as "the flagrant violation of public order expressed by a clear disrespect for society." Campus protests in the United States, whether or not they involve illegality, are regularly deemed "uncivil" even when they meet the three norms of civility. Many journalists and other members of the public do not view student protests as the nonviolent speech-acts that, for the most part, they are, focusing instead on what are seen as rude, even "hysterical" shouting-down tactics. Or again, acts of principled lawbreaking that are public, non-evasive, and nonviolent, such as road blocks, may be so disruptive that they are not seen as civil. According to critics, religious sacrilege, refusal to listen to one's adversary, and grave disruptiveness constitute failures to treat the audience respectfully, and are therefore incompatible with the civil disobedient's civility.

These critiques point to a fourth norm of civility, which I conceive as decorum. For liberals, civility-as-decorum is what we need to get along with people with whom we disagree. It concerns the ways citizens ought to interact with each other in the public sphere, when debating political questions. Specifically, citizens ought to set aside comprehensive (religious and moral) values, appeal to the values of public reason, and listen to others' views with respect and fair-mindedness.⁵² On the standard liberal picture, citizens who want to enter the public sphere ought to behave in a dignified and polite manner and avoid causing offense. Civil disobedients, in particular, ought to treat their audience respectfully, as people they seek to persuade. Pussy Riot's attack on religion caused outrage; shouting down runs afoul of the demand that we listen respectfully to others with whom we disagree; and even peaceful roadblocks may cause such an

inconvenience to the public that they are seen as reckless and disrespectful. All three may be deemed to be offensive and disrespectful (though in different ways) and thus to fall short of civility-as-decorum.

This is not to say, however, that any denial of civility should always be taken at face value, as Sarat's analysis of *Walker* evinces. San Francisco 49ers' quarterback Colin Kaepernick's silent protest in 2016, as he sat during the national anthem to protest racial oppression, provoked widespread outrage. Kaepernick was condemned as a "traitor," disrespectful to the flag.⁵³ But his protest, and the "take-a-knee" campaign that followed the next year, has been lawful and respectful. Construing it as a breach of civility-as-decorum seems exaggerated and disingenuous. **Those in power often unjustly wield accusations of incivility to silence and stigmatize protesters—especially when these are Black.**

The definition of civil disobedience as a public, nonviolent, non-evasive, respectful principled breach of law intended to persuade the majority captures well the public's rather narrow understanding of the boundaries of acceptable political protest. It constitutes a pared-down version of the standard Rawlsian account, as it does not include any subjective requirements such as the agent's endorsement of the system's legitimacy and acceptance of the moral duty to obey the law.

The basic norms of civility at the core of civil disobedience suggest the following features of uncivil disobedience: covertness, evasiveness, violence, and offensiveness. We might conceive of uncivil disobedience as a cluster concept, for whose application we treat any one of the four features—covertness, evasiveness, violence, and offensiveness—as sufficient. But, in recognition of the complexities of political action and difficulties of drawing clear definitional lines, I prefer to simply say that acts of principled disobedience that are covert, evasive, anonymous, more than minimally destructive, or deliberately offensive are *generally* uncivil, especially if they display more than one of these traits. Some acts of uncivil

disobedience are primarily communicative, but many do not aim to persuade an audience—seeking instead to prevent or redress wrongs—though they may still include communicative elements. Examples include coercive strikes, riots, guerilla street art, DDoS actions, hunger strikes, covert assistance to undocumented immigrants, unauthorized whistleblowing, vigilantism, and the strategies commonly labeled as direct action, such as ecosabotage and animal rescue operations.

Strikes are coercive and violent when participants deploy force against employees who choose to work during the strike (“scabs”) and those hired by the company to keep production running (“strikebreakers”). Riots involve collective public violence such as looting, property destruction, and harm against persons. Guerilla street art is covert and evasive, typically done under cover of night. DDoS actions are usually anonymous and evasive, and often coercive insofar as they enroll involuntary computer botnets through malware. Hunger strikes are evasive and coercive, involving threat of suicide and the deliberate and repeated defiance of official orders, and imposing serious burdens on the targeted authorities. Unauthorized whistleblowing poses serious risks of harms to persons, such as undercover agents and informants, and to national security. Vigilantism usually includes violence against persons. Ecosabotage involves deliberate and more than minimal destruction of property (e.g., monkey-wrenching) and sometimes the endangerment of persons (e.g., tree spiking).

Acts of conscientious objection, which fall in the category of principled disobedience when they are illegal (much conscientious objection is legally protected in liberal societies), may be civil or uncivil depending on the form they take. For instance, U.S. draftees could conscientiously object to the Vietnam War through public protests and civil disobedience or covertly and evasively—uncivilly—through draft dodging (e.g., escaping to Canada)—or both.

This concludes our conceptual investigation of resistance and disobedience. As we saw, the standard understanding of civil disobedience combines the philosophical, broadly Rawlsian conception of civil disobedience and the official narrative of the civil rights movement in the United States into an unrealistic and problematic conception of civil rights–style civil disobedience that serves to deter dissent and resistance. Minimalist accounts of civil disobedience, for their part, fail to be politically useful or phenomenologically accurate. I proposed instead a broad, multidimensional matrix of political resistance that includes principled disobedience, both civil and uncivil.